

Bros JetSkis Rental Agreement, Liability Waiver & Assumption of Risk

Website Template (Draft)

This template is designed for integration into an online booking system. It should be reviewed by an Ontario lawyer before commercial use.

Before You Continue

Please read this Agreement carefully. By signing electronically, you acknowledge that you have read, understood, and agree to be legally bound by these terms.

Customer Information

Fields: First Name, Last Name, Date of Birth, Address, Phone, Email, Government ID, Emergency Contact.

Rental Information

Fields: Rental Date, Rental Time, Number of Jet Skis, Number of Riders, Rental Type: Designated Riding Zone (No Deposit) OR Free-Range (\$1,000 refundable security deposit per jet ski).

Acknowledgements

- I meet all legal requirements to operate a personal watercraft.
- I will follow all safety instructions.
- I understand the inherent risks of operating a personal watercraft.

Assumption of Risk

The renter voluntarily assumes all ordinary risks associated with operating and riding a personal watercraft, including collisions, falls, weather, waves, submerged objects, and actions of others.

Release of Liability

To the fullest extent permitted by Ontario law, the renter releases Bros JetSkis from liability for injuries or losses arising from ordinary negligence. This does not exclude liability that cannot legally be waived.

Designated Riding Zone

Renters selecting the designated riding zone must remain within the approved operating area unless authorized otherwise.

Free-Range Rentals

A refundable \$1,000 CAD security deposit per jet ski is required before departure.

Security Deposit & Financial Responsibility

No security deposit is required for designated riding zone rentals. HOWEVER, the absence of a security deposit does NOT eliminate or reduce the renter's financial responsibility. The renter remains fully responsible for damage, misuse, towing, recovery, excessive cleaning, theft, negligent operation, and all other legally recoverable losses. The \$1,000 free-range deposit is security only and does not limit liability if damages exceed that amount.

Unauthorized Departure

Leaving the designated riding area without authorization may result in immediate termination of the rental without refund. The renter remains responsible for retrieval costs, rescue costs, damage, fines, and other resulting losses.

Damage Reporting

Any accident, impact, grounding, rollover, mechanical issue or damage must be reported immediately.

Payment Authorization

The renter authorizes Bros JetSkis to charge the payment method on file for amounts legally owed under this Agreement, subject to applicable law and payment processor rules.

Electronic Signature

- I have read and understood this Agreement.
- I understand that no deposit does not mean no liability for damages.
- I agree to all terms.

Signature: _____

Printed Name: _____

Date: _____